

Hearing on Defendant's post-judgment motion for attorneys' fees (originally filed January 24, 2025) is continued to **February 26, 2027** at 9:00 a.m. in Department 32.

Please note that this case will be assigned to another department effective January 4, 2027. Please check the court's website to ascertain the department that will be presiding over this case for all purposes.

16. 9:00 AM CASE NUMBER: MSC21-01379

CASE NAME: MOFFETT VS. SONIC WALNUT CREEK

POST-JUDGMENT ATTORNEYS FEES AND COSTS

FILED BY: MOFFETT, JAMES

TENTATIVE RULING:

The unopposed motion for an Order Granting Judgment Creditor's Motion for Post-Judgment Attorneys' Fees and Costs is granted, in the amount of \$8443.77. The Court will execute the proposed order lodged with the Court on April 10, 2026.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-01045

CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,

COMPEL CROSS-DEFENDANT MICHAEL JENKINS' FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

FILED BY: D & A CARRIER, INC,

TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilias Insurance Company, as well as any cross-actions filed by the Parties."

Once a court grants a motion to compel arbitration, the case enters what has been called "the twilight zone of abatement," in which the court maintains "merely a vestigial jurisdiction over matters submitted to arbitration." (Brock v. Kaiser Foundation Hospitals (1992) 10 Cal.App.4th 1790, 1796.) This vestigial jurisdiction generally "consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not...." (Id.) It follows that this court has no jurisdiction to adjudicate discovery motions pertaining to this lawsuit.

Accordingly, the court lacks jurisdiction to rule on this discovery motion and it is dropped from calendar without prejudice.

18. 9:01 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
*HEARING ON MOTION FOR DISCOVERY COMPEL VEHICLE INSPECTION
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Matter is vacated at the request of the moving party.

Courtroom Clerk's Session

19. 1:30 PM CASE NUMBER: C23-00472
CASE NAME: CARA PINE VS. CHATTERJEE MINA
ISSUE CONFERENCE
FILED BY:
TENTATIVE RULING:

Parties to appear.

Law & Motion
Add On

20. 9:00 AM CASE NUMBER: C25-01431
CASE NAME: PATRICK SHANAHAN VS. ZOE HOLDING COMPANY, INC.
APPLICATION FOR EXTENSION OF PRELIMINARY INJUNCTION / CONT'D FROM 8/14/26 PER TR
FILED BY: SHANAHAN, PATRICK
TENTATIVE RULING:

Before the Court is plaintiff's application to extend the preliminary injunction previously granted. In November of 2025, plaintiff posted a \$1,000 bond (see Code Civ. Proc., § 529) in order to implement an injunction staying an unlawful detainer action (Case No. MS25-0521) against him for six months. The Order granting the injunction permitted plaintiff to "move to renew the injunction" with any additional evidence acquired. Prior to the expiration, plaintiff brought this application to extend the injunction, pending resolution of this case. The application is **denied**, as discussed below.

I. Allegations and Factual Background

Around 2002, plaintiff began working for MGA Healthcare in Arizona. (The documents make reference to MGA Healthcare, MGA Homecare, and MGA Employee Services, but any distinction or lack thereof is not explained, nor are there any alter-ego allegations. For the purposes of this ruling, the Court will refer simply to MGA). Defendant David Zowine was one of the owners of MGA, either directly or indirectly through his ownership of Zoe Holding Co. (Complaint, ¶¶10-11.) Plaintiff alleges